

**IN THE HIGH COURT OF MADHYA PRADESH
AT INDORE**

WP No. 7434 of 2022

*(R.N. KAPOOR MEMORIAL HOMOEOPATHIC HOSPITAL AND MEDICAL COLLEGE THROUGH ITS PRINCIPAL
DR. MAHENDRA SI Vs THE STATE OF MADHYA PRADESH AND OTHERS)*

Dated : 31-03-2022

Shri Gagan Tiwari, learned counsel for the Petitioner.

Shri Shrey Raj Saxena, learned counsel for the respondent No.1 and 2.

Shri Himanshu Joshi, learned counsel for the Respondent [R-3].

Shri Sudhanshu Vyas, learned counsel for the respondent No.4.

Issue notice to the respondents.

Counsel for the respondents accept notice on their behalf, thus no separate notice is required to issue them.

Learned counsel for the petitioner at the very outset has drawn the attention of this Court towards order dated 09.03.2022 passed in W.P. No.5634/2022, whereby the petitioners therein have been granted interim relief.

Learned counsel for the respondents have not disputed the aforesaid fact.

"The subject matter and question of law involved herein is similar to the one that is being considered in W.P. No.4609 of 2022 (Rani Dullaiya Smriti Homeopathy Medical College and Hospital & Others v/s The State of Madhya Pradesh), before the Principal Seat at Jabalpur. By the order dated 03.03.2022, a detailed interim order was granted permitting the petitioner / Institution to fill up the vacant seats in their respective colleges after all NEET qualified candidates have made their choices. This petitioner too is entitled to the very same interim order. Hence, interim order as granted in W.P. No.4609 of 2022 vide order dated 03.03.2022.

Shri Aditya Garg, Govt. Advocate takes notice for respondents No.1 and 2.

Shri Himanshu Joshi, Advocate takes notice for respondent No.3.

Issue notice to respondent No.4.

Issue rule nisi.

Post of hearing in the usual course."

In view of the above, the petitioner in the present case is also entitled for

similar relief. Resultantly, the interim order dated 09.03.2022 shall apply in the present case also.

List alongwith W.P. No.6707/2022 and W.P. No.5634/2022.

(VIVEK RUSIA)
JUDGE

(AMAR NATH (KESHARWANI))
JUDGE

Praveen

